

claim of the auxiliary request was not allowable under Art. 123(3) EPC 1973. The subject-matter protected by the granted claim was a pacer, **when in use**; in contrast, the claim of the auxiliary request only included technical features which defined physical characteristics of the pacer device itself. The board explained that in general terms, if a patent as granted only included claims defining the operation of a device and therefore **containing both "device features" and "method features"**, and the proposals to amend the patent during opposition proceedings included claims which only contained "device features", the proposed amendment was not allowable having regard to Art. 123(3) EPC 1973, because the patent as granted conferred protection upon the device only when it was in use so as to carry out the method, whereas the proposed amended patent would confer protection upon the device whether or not it was in use, and would therefore confer additional protection compared to the patent as granted. In contrast to the findings in T. 426/89, in the case at issue the board held that claim 1 as granted was clear, defined the use of a device to carry out a method of treatment of the human body by therapy and was not a pure "device claim" since it also included method steps. Thus, under such circumstances, Art. 52(4) and Art. 123(3) EPC 1973 might operate in combination as an "inescapable trap".

T. 1830/14, too, concerned the conversion of a granted method claim to a device claim. The board recalled that a claim directed to an apparatus provided absolute protection of the defined apparatus and, hence, its scope of protection was broader than the scope defined by a claim directed to a method of production or use of the same apparatus. In the case at issue, compared to the cooling apparatus defined in claim 1 as granted, in the apparatus claim 1 of the main request a feature had been deleted. The appellant argued that granted independent method claim 9 defined a cooling apparatus without the deleted feature and that, therefore, deleting this feature from the apparatus claim did not broaden the scope of protection. However, referring to the principles stated in T. 82/93 (OJ 1996, 274), the board observed that in the case in hand two features defining the operation of the cooling apparatus in claim 9 as granted were missing from claim 1 of the main request. The protection conferred by granted claim 9 to the defined cooling apparatus was limited to the apparatus when it was transferring heat according to the missing features, i.e. only when it was in operation. Claim 1 at issue defined the same cooling apparatus as granted claim 9, but conferred absolute protection to it, irrespectively of whether it was in operation or not. Hence, its scope of protection was broader than that of granted claim 9 and the main request did not fulfil the requirements of Art. 123(3) EPC. The board accepted auxiliary request IV, as the apparatus claim also contained the features defining the operation of the apparatus.

#### 2.7.6 From use claim to process claim, and vice versa

In T. 279/93 the board found that a claim to the use of a compound A in a process for preparing compound B had no broader scope than a claim to a process for preparing compound B from compound A. It had already been stated in G. 2/88 (point 2.5 of the Reasons) that the technical features of a claim to an activity were the physical steps which defined such activity. In this case, the board considered that process claim 1 as filed, process claim 1 as granted and use claim 1 filed on appeal all related to the same physical steps, and that the claims were therefore of the same scope. On this view, the scope of

protection conferred by this use claim was not broader than that conferred by the granted process claim (see also T. 619/88).

In T. 420/86 a change from a claim for a process for treating soil, in which X was used, to a claim for the use of X for treating soil was allowed. In T. 98/85 on the other hand, a change from a "process for the preparation of a ... composition" to the "use of this ... composition as a ..." was seen as a breach of Art. 123(3) EPC 1973.

In T. 276/96 the board decided in view of G. 5/83 (OJ 1985, 64) that the change of claim of the type "Method of fabricating item A using item B providing effect C" to a claim of the type "Use of item B in a method of fabricating item A to provide effect C" did not extend the protection conferred, since with both formulations the same activity would be forbidden to competitors.

In T. 22/09 of 5 February 2016 the board held that since claim 1 as granted concerned a method of pre-treating a catalyst support, which by virtue of Art. 64(2) EPC extended the protection conferred to the pre-treated catalyst support directly obtained by the claimed method, and since instead claim 1 according to the new request concerned the use of a modifying component for suppressing the solubility of a catalyst support, i.e. defined the use of a chemical compound to obtain a particular effect on the catalyst support, the protection conferred by the patent as granted had not been extended.

#### 2.7.7 From use claim to Swiss-type claim

In T. 1635/09 (OJ 2011, 542) claim 1 in the 23rd auxiliary request differed from claim 1 in the granted text in that the originally granted use claim was converted to the so-called Swiss form of claim, i.e. a claim for the use of a substance or mixture of substances for manufacturing a medicament for a specific therapeutic use. Under the established jurisprudence of the boards of appeal, when establishing whether the scope of protection was extended by this amendment all the granted claims must be taken into consideration. It was therefore necessary to determine whether the reformulation of a claim for the "use of an oral dosing form comprising ... for contraception ..." into a claim for the "use of a composition comprising ... for manufacturing an oral ... dosing form for contraception ..." complied with the requirements of Art. 123(3) EPC. A crucially important question here was whether the Swiss-type claim was to be regarded as for (a) the use of a substance or mixture of substances for a specific purpose or (b) the manufacture of a medicament. Citing G. 5/83 (OJ 1985, 64) and G. 2/88 (OJ 1990, 93), the board in T. 1635/09 ruled that the conversion of a claim for the use of a substance or mixture of substances for a specific purpose into a Swiss-type claim or a product claim limited to a specific use in accordance with Art. 54(5) EPC results in an extension of the scope of protection.

#### 2.7.8 From Swiss-type claim to purpose related product claim under Article 54(5) EPC

In T. 250/05 the board held that, apart from the fact that Art. 54(5) EPC (entry into force 13 December 2007) did not apply to a patent granted in 2001, Art. 123(3) EPC would not allow the change of category of a granted use claim into a product claim, even if drafted

as a purpose-related product claim. Therefore, in the case at issue, the amended claims had to remain in the "Swiss form" in order not to contravene Art. 123(3) EPC.

In T 1780/12, in the context of double patenting, the board understood that the board in T 250/05 had considered that the scope of protection conferred by a purpose-related product claim was in fact larger than the scope of protection conferred by a Swiss-type claim. See also T 879/12.

In T 1673/11 claim 1 of the main request was drafted in the format of a purpose-limited product claim as provided for by Art. 54(5) EPC, whereas all claims as granted had been in the so called "Swiss-type" form. For the respondent, the protection conferred by both types of claims was the same. The board disagreed. The purpose-limited product claim conferred protection on the product, whenever it was being used for the treatment of infantile Pompe's disease. Since the claim did not refer to a step of manufacture of a medicament, the product claimed was not limited to a manufactured medicament, packaged and/or with instructions for use in the treatment of infantile Pompe's disease. Even if by virtue of Art. 64(2) EPC the protection conferred by granted claim 1 extended to the product directly obtained by the manufacturing process referred to in said claim, the protection conferred by claim 1 of the main request was broader. Nor could the board follow the appellant's argument that since the use limitation of the claims of the main request and of the granted claims was the same, their scope of protection was identical. For example, once the patent was amended, a medicament containing the product, packaged and provided with instructions for the use in a treatment other than that of infantile Pompe's disease was encompassed by the scope of claim 1 of the main request when said medicament was being used for the treatment of infantile Pompe's disease. The protection conferred by granted claim 1 did not encompass such use. The board concluded that the amendment of the contested patent in such a way extended the protection it conferred, contrary to Art. 123(3) EPC.

### **3. Relationship between Article 123(2) and Article 123(3) EPC**

This chapter concerns the "inescapable trap" of Art. 123(2) EPC in combination with Art. 123(3) EPC when the applicant inadmissibly adds a limiting feature to the claim. A similar trap may exist in the situation in which there is no violation of Art. 123(2) EPC but a lack of novelty due to loss of priority, see T 1983/14 summarised in chapter II.E.2.4.1 above. For the situation in which an unclear feature (Art. 84 EPC) is deleted from the claim and the argument that this also might lead to an "inescapable trap", see T 81/13 summarised in chapter II.E.1.4.7 above.

#### **3.1. Inescapable trap**

In T 384/91 (OJ 1994, 169) the question was referred to the Enlarged Board whether, given the requirements of Art. 123(2) and (3) EPC 1973, a patent could be maintained in opposition proceedings if its subject-matter extended beyond the content of the application as filed, whilst at the same time the added feature limited its scope of protection. The conflict here was that the "limiting extension" had to be deleted as a breach of

Art. 123(2) EPC 1973, but to do so would broaden the scope of the patent and thus contravene Art. 123(3) EPC 1973 (see G 1/93, OJ 1994, 541).

This problem had been extensively discussed for the first time in T 231/89 (OJ 1993, 13), where the board held it to be inappropriate to take Art. 123(2) and 123(3) EPC 1973 as independent of each other while applying them in conjunction to revoke the patent.

In G 1/93 (OJ 1994, 541) the Enlarged Board of Appeal ruled as follows:

If a European patent as granted contained subject-matter which extended beyond the content of the application as filed within the meaning of Art. 123(2) EPC 1973 and which also limited the scope of protection conferred by the patent, such patent could not be maintained in opposition proceedings unamended, because the ground for opposition under Art. 100(c) EPC 1973 prejudiced the maintenance of the patent. Nor could it be amended by deleting such limiting subject-matter from the claims, because such amendment would extend the protection conferred, which was prohibited by Art. 123(3) EPC 1973. Therefore, in principle, if the European patent as granted contained a "limiting extension", it had to be revoked. Art. 123(2) and 123(3) EPC 1973 were mutually independent of each other (T 1736/09: by analogy, Art. 76(1) EPC and Art. 123(3) EPC must also be regarded as mutually independent of each other). In this sense, it had to be admitted that Art. 123(2) EPC 1973 in combination with Art. 123(3) EPC 1973 could operate rather harshly against an applicant, who ran the risk of being caught in an **inescapable trap** and losing everything by amending his application, even if the amendment was limiting the scope of protection. However, this hardship was not per se a sufficient justification for not applying Art. 123(2) EPC 1973 as it stood in order to duly protect the interests of the public. Nor did it, in principle, matter, that such amendment had been approved by the examining division. The ultimate responsibility for any amendment of a patent application (or a patent) always remained that of the applicant (or the patentee).

### 3.2. Attempts to resolve the conflict

#### 3.2.1 General

The Enlarged Board in G 1/93 (OJ 1994, 541) mentioned three instances where the patent could be maintained:

- If the added undisclosed feature could be **replaced** by another feature disclosed in the application as filed without breaching Art. 123(3) EPC 1973, the patent could be maintained in amended form (G 1/93, Headnote 1). See below in this chapter II.E.3.2.2.
- An added undisclosed feature **without any technical meaning** could be **deleted** from a claim without violating Art. 123(3) EPC 1973 (G 1/93, point 4 of the Reasons, citing T 231/89). See below in this chapter II.E.3.2.3.
- An added undisclosed feature, which **did not provide a technical contribution** to the subject-matter of the claimed invention but merely limited the protection conferred by the

patent as granted by excluding protection for part of the subject-matter of the claimed invention as covered by the application as filed, was not considered as subject-matter which extended beyond the content of the application as filed within the meaning of Art. 123(2) EPC 1973. In this case also the patent could be maintained (G 1/93, Headnote 2). See below in this chapter II.E.3.2.4.

In T 1180/05 the board, on the basis of decisions G 1/93 and G 1/03 (OJ 2004, 413) dealing with Art. 123(2) and (3) EPC 1973 and with disclaimers, came to the conclusion that the deletion of a feature in a granted claim, which feature extended beyond the content of the application as filed, and its reintroduction in the form of a disclaimer, so that the subject-matter of the claim remained the same, was not suitable to overcome the potential conflict between Art. 123(2) and (3) EPC 1973. The decision of the opposition division maintaining the patent in amended form was set aside and the patent revoked.

Further circumstances in which boards have found that the conflict could be solved were mentioned in T 1127/16:

- The added undisclosed, limiting feature in contravention of Art. 123(2) EPC 1973 could be maintained in the claim without violating Art. 123(2) EPC 1973 provided that a further limiting feature was added to the claim which further feature was properly disclosed in the application as filed, and deprived the undisclosed feature of all technical contribution to the subject-matter of the claimed invention (T 553/99).

- The added undisclosed feature **could effectively be ignored** if it did not add anything over the other features of the respective claim, such that it had to be considered **redundant** (T 310/13).

- If the added undisclosed feature – in T 131/15 an expression – taken literally and in isolation, had the effect of excluding all of the disclosed embodiments from the scope of protection, but a definition of this feature could be derived from the patent itself which would locate (at least some of) the disclosed embodiments within the ambit of the claim, and if this definition was not manifestly unreasonable, having regard to the normal meaning of the words used in the expression, then in judging compliance with the requirements of Art. 123(3) EPC, the scope of protection should normally be considered to include at least that which would fall within the terms of the claim understood according to this definition (T 131/15). The board in T 1127/16 expressed doubts about this test and distinguished its case from the facts underlying T 131/15. On these two decisions and on earlier decisions regarding inconsistencies and the inescapable trap between the requirements of Art. 123(2) and (3), see below in this chapter II.E.3.2.5.

- One further circumstance referred to in T 1127/16 (replacement of the added undisclosed feature by a broader feature) is presented below in chapter II.E.3.2.2 as a sub-case of the instance set out in G 1/93, Headnote 1.

The board noted in T 335/03 that, according to G 1/93, there was no basis in the Convention for providing a claim with a footnote to the following effect; "This feature is the subject of an inadmissible extension. No rights may be derived from this feature"; in